

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nina Mickens	Team: Team # 2	CCRB Case #: 201008519	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 06/20/2010 10:43 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/20/2011	Precinct: 79
Date/Time CV Reported Sun, 06/20/2010 11:39 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 06/23/2010 2:18 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Erick Erdaide	08391	947910	BN IRT
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Vincent Campo	08206	947994	BN IRT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erick Erdaide	Force: PO Erick Erdaide fired his gun at § 87(2)(b)	A . Complainant Uncooperative
B . An officer	Force: An officer struck § 87(2)(b) with a night stick.	B . Complainant Unavailable

Case Summary

On June 20, 2010, PO Peter Kobel called the Internal Affairs Bureau Command Center to make a report. IAB Log # 10-31084 was generated and received at the CCRB on June 23, 2010. PO Kobel stated that on June 20, 2010, at approximately 10:43 p.m., § 87(2)(b) was waving a machete knife around in the vicinity of § 87(2)(b) in Brooklyn. PO Erick Erdaide and PO Vincent Campo responded to the location. PO Erdaide fired one round from his firearm hitting § 87(2)(b) in the leg (Allegation A). § 87(2)(b) was removed to § 87(2)(b) and both officers were removed to § 87(2)(b) for trauma. On June 21, 2010, a received worksheet at IAB indicated that § 87(2)(b) a witness to § 87(2)(b)'s incident, was interviewed. He is the boyfriend of § 87(2)(b)'s sister, § 87(2)(b). § 87(2)(b) stated that he got excited over the shooting and tried to speak to the officers. Backup officers who responded told him to leave. § 87(2)(b) was struck in the leg with an asp by a Hispanic male officer dressed in plainclothes (Allegation B). § 87(2)(b) had swelling and an abrasion on his left leg and refused medical aid.

§ 87(2)(g)
§ 87(2)(b). A search of the COLES directory listed a telephone number associated with § 87(2)(b)'s address. Five attempts were made to contact § 87(2)(b) via telephone between July 7, 2010 and July 15, 2010. The line was busy each time. Two letters were mailed to § 87(2)(b)'s address on June 29, 2010 and July 7, 2010 and the letters were not returned. An initial search of the Department Corrections indicated that § 87(2)(b) was not incarcerated. However, on July 16, 2010, it was confirmed that § 87(2)(b) was at Rikers Island. Three attempts to contact § 87(2)(b), the attorney representing § 87(2)(b) were made via telephone. On July 26, 2010, § 87(2)(b) explained that he was not sure if § 87(2)(b) was able to provide a statement and needed time to assess his mental health and familiarity with the English language. It was agreed that a follow up call to § 87(2)(b) would be made on August 3, 2010, after their court date. On August 5, 2010, § 87(2)(b) contacted the CCRB explaining that he was no longer representing § 87(2)(b) and provided contact information for § 87(2)(b) who was the new attorney. Three attempts were made to contact § 87(2)(b) via telephone and a letter was mailed to him on August 9, 2010. On August 16, 2010, § 87(2)(b) contacted the CCRB on behalf of § 87(2)(b) who was out of town. § 87(2)(b) explained that it was § 87(2)(b) request that the CCRB not interview § 87(2)(b) or try to obtain a statement from him. It was asked that the office send something in writing stating that they were withdrawing the complaint. § 87(2)(b) faxed a document to the CCRB on August 17, 2010, affirming that he does not give authorization to the CCRB to communicate with § 87(2)(b).

A home address and telephone number for § 87(2)(b) was listed on the IAB Log. Please call letters were mailed to § 87(2)(b) on June 23, 2010 and July 14, 2010. However, the letters were returned to the CCRB. Five attempts were made to contact § 87(2)(b) via telephone between June 29, 2010 and July 14, 2010. After trying to contact § 87(2)(b) on the number listed on the IAB Log on July 1, 2010, § 87(2)(b)'s sister § 87(2)(b) answered. She confirmed that § 87(2)(b) did not live at the address listed but would not provide a current address. § 87(2)(b) took a message to have § 87(2)(b) contact the CCRB. An attempt was made to contact § 87(2)(b) via telephone on July 7, 2010, at which time § 87(2)(b)'s sister, § 87(2)(b) answered. She provided a cell phone number for § 87(2)(b). The final three attempts to contact § 87(2)(b) were made to the cell phone number. The first time, the outgoing message indicated that § 87(2)(b) was the owner of the phone. A voicemail message was left. On the next two attempts to contact § 87(2)(b) a prompt indicated that the person was unavailable and there was no option to leave a voicemail message.

A check of the Department of Corrections confirmed that § 87(2)(b) was not incarcerated. As of the date of this report, § 87(2)(b) has not contacted the CCRB. § 87(2)(g) The identity of the officer that hit § 87(2)(b) with an asp is unknown. Therefore allegation B is pleaded against “An officer.” § 87(2)(g)(b) It is recommended that Allegation A be closed as “Complainant Uncooperative” and Allegation B be closed as “Complainant Unavailable.”

Team: _____

:

Investigator: _____	_____	_____
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date